

Defendants and Plaintiffs have each requested attorney fees. The Settlement Agreement provides attorney fees to the prevailing party, which the Court will determine at a later date in this litigation.

Ruling

Based on the above analysis, Defendants' motion to enforce the settlement agreement is DENIED WITHOUT PREJUDICE to Defendants invoking some other procedure to enforce the settlement agreement.

9. 9:00 AM CASE NUMBER: C26-00770
CASE NAME: JIE SUO VS. GEZHI WENG
COMPLAINT
FILED BY: WENG, GEZHI
TENTATIVE RULING:

Defendant Gezhi Weng's Demurrer to Plaintiff Jie Suo's Complaint is **overruled** in its entirety.

Plaintiff shall prepare a formal order consistent with this ruling and serve notice of entry of order. Defendant shall have 10 days from service of notice of entry to file and serve an answer to the complaint.

I. Background and Allegations of the Complaint

Plaintiff Jie Suo, a Mandarin speaker who cannot speak or read English, met Defendant Gezhi Weng in 2014. (Complaint, ¶¶ 11, 14.) Weng, a licensed bilingual real estate broker and mortgage loan originator running SunRise Realty and Financing out of her home, convinced Suo to purchase a residence at 3128 Marsala Drive in Pittsburg, California (the Property), in early 2015 for \$630,893. (*Id.* ¶¶ 3-4, 12-13, 17-18.) Suo contributed over \$104,000 of her own funds into escrow for the down payment and closing costs. (*Id.* ¶¶ 19, 27.) Rather than shopping for conventional market-rate financing as promised, Weng steered Suo into a private hard-money loan at a 15% interest rate funded by SunCoast Realty, an unregistered entity run by Weng's brother, Yi Weng, and sister-in-law, Ning Qin. (*Id.* ¶¶ 5-7, 22-24.) Weng concealed this family relationship, collected origination fees and uncredited cash payments from Suo, provided English-only documents without required translations, and promised that the 15% loan would be refinanced into a standard mortgage within 45 days. (*Id.* ¶¶ 23, 26, 28-29, 34-36.) Escrow closed and title was conveyed to Suo on March 23, 2015. (*Id.* ¶ 33.)

When Suo pressed to refinance out of the high-interest loan over the following year, Weng claimed she was searching for lenders. (Complaint, ¶¶ 37-38, 42-43.) On October 17, 2016, Weng directed Suo to meet her at a mailbox store in Oakland to sign what Weng represented were standard documents needed to search for a new refinance loan. (*Id.* ¶ 39.) Because the document was untranslated and entirely in English, Suo signed it, unaware that it was actually a Gift Deed transferring a 50% ownership interest in the Property to Weng for zero consideration. (*Id.* ¶¶ 40-41, 84-85.)

In June 2017, Weng arranged a refinance through Sterling Bank to pay off the 15% SunCoast loan. (*Id.* ¶¶ 44, 54.) Weng told Suo that she was merely co-signing as a guarantor because Suo was not a U.S.

citizen; however, Weng negotiated the loan in her own name as the sole borrower with a Sterling Bank loan officer who never spoke to Suo. (*Id.* ¶¶ 46-49, 52.) On June 9, 2017, Weng sent Suo to Stewart Title in Danville to sign an untranslated Deed of Trust that encumbered the Property with a lien for Weng's loan. (*Id.* ¶¶ 46, 48.) Although the refinance proceeds paid off the SunCoast loan, Weng's brother and sister-in-law never recorded a deed of reconveyance, leaving a cloud on title. (*Id.* ¶¶ 54-55, 99.) On July 19, 2017, Weng urgently sent Suo to a UPS Store notary in Concord, claiming the title company had forgotten a routine document. (*Id.* ¶¶ 58-63.) In reality, Weng had Suo execute a \$448,000 Deed of Trust against the Property in favor of Weng's brokerage, SunRise Realty, for which Suo received no consideration. (*Id.* ¶¶ 64-65, 102.)

For the next six years, Suo lived at the Property, paid all property taxes, insurance, and maintenance, and made monthly mortgage payments directly as instructed by Weng. (Complaint, ¶¶ 56, 79–83.) Weng maintained exclusive control over the account, instructed Sterling Bank and subsequent loan servicers never to provide statements or loan details to Suo, and directed Suo to overpay monthly amounts so that Weng could collect overpayment refund checks from the bank. (*Id.* ¶¶ 56-57, 68-70, 73.) On June 15, 2023, Suo filed a voluntary Chapter 7 bankruptcy petition in the United States Bankruptcy Court for the Northern District of California (In re Jie Suo, Case No. 23-40698).

On July 3, 2023, Suo went into a Sterling Bank branch to make a mortgage payment, but a teller refused the payment and explained that Weng was the sole borrower and had blocked anyone else from accessing loan information. (Complaint ¶ 70.) This prompted Suo to obtain a “chain of title for the Property” on July 13, 2023, which is when she first learned that the 2016 Gift Deed and the 2017 SunRise \$448,000 Deed of Trust were recorded against the Property, and that the 2015 SunCoast Deed of Trust was never reconveyed. (*Id.* ¶ 71.) The Bankruptcy Court entered an order abandoning the estate's interest in the Property and claims to Suo. Following that abandonment order, Suo filed this action on March 6, 2026, asserting causes of action for (1) quiet title, (2) reformation of instruments, (3) slander of title, (4) cancellation of instruments, (5) fraud, (6) breach of fiduciary duty, (7) negligence, (8) unfair competition, (9) accounting, and (10) declaratory relief.

Defendant Weng, appearing in pro per, now demurs to the complaint pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f). Weng's central argument is that all of Plaintiff's claims are barred by their respective statutes of limitations because the underlying transactions occurred between 2015 and 2017. Weng argues Plaintiff cannot rely on the delayed discovery rule because the public recording of the deeds and deeds of trust imparted constructive notice of the adverse transfers as a matter of law. Weng also argues the equitable claims for cancellation and reformation fail for lack of an offer to tender the underlying loan proceeds, that the individual causes of action fail to state sufficient facts, and that the complaint is fatally uncertain. Plaintiff opposes the demurrer.

II. Legal Standard

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation, reading it as a whole and its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts properly pleaded, facts that may be reasonably inferred from those expressly pleaded, and matters properly subject to judicial notice. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) A demurrer,

however, does not admit contentions, deductions, or conclusions of fact or law. (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

To survive a demurrer, the complaint need only allege ultimate facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be pleaded. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

A special demurrer for uncertainty under Code of Civil Procedure section 430.10, subdivision (f) is disfavored and strictly construed; it lies only where the pleading is so incomprehensible that the defendant cannot reasonably determine what issues must be met. (*Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822.) Where a complaint states the essential facts of a claim, any underlying ambiguities or specific evidentiary details are properly clarified through modern discovery procedures rather than by demurrer. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

III. Preliminary and Procedural Issues

A. Requests for Judicial Notice

Plaintiff's Request for Judicial Notice of various bankruptcy court filings (Exhibits 1–6) is denied. These documents are irrelevant to the disposition of the demurrer, because the complaint's allegations of delayed discovery are independently sufficient to withstand demurrer without reaching the bankruptcy tolling issue. (*People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422, fn. 2 [judicial notice is properly denied where the matter is irrelevant to the disposition of the action].)

Defendant's request for judicial notice presented with the reply papers is also denied. Defendant offers these records on reply to contradict the factual allegations of the Complaint regarding inquiry notice and delayed discovery. Because Defendant had the Complaint in hand and could have raised this argument in the moving papers, raising it for the first time on reply is improper. (*American Drug Stores, Inc. v. Stroh* (1992) 10 Cal.App.4th 1446, 1453 ["[p]oints raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument"]; *Neighbours v. Buzz Oates Enterprises* (1990) 217 Cal.App.3d 325, 335, fn. 8.)

B. Meet and Confer Requirement

Code of Civil Procedure section 430.41(a) requires that the demurring party meet and confer with the party who filed the pleading that is subject to the demurrer at least 5 days before the date the responsive pleading is due, by telephone or in person, for the purpose of determining if the parties can resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41.) The demurring party must file and serve a declaration detailing their meet and confer efforts.

There is no indication that Defendant complied with her meet and confer obligations. In the future, the Court may continue the hearing on any demurrer for the parties to properly meet and confer over the telephone and the Court deny motions filed without a meet and confer if required for those motions. As the failure to meet and confer is not a ground to overrule the demurer (Code Civil Proc. § 430.41(a)(4)), the Court turns to the merits.

C. Procedural Deficiencies in Defendant's Reply

Defendant's reply memorandum is 17 pages (without the required table of authorities). This is improper.

"[P]ro per litigants are held to the same standards as attorneys." (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) "[M]ere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation. ... A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 375, 384-385, citation omitted.)

Defendant is admonished that her self-represented status does not excuse her from adhering to the California Rules of Court or the settled rule that a reply memorandum cannot be used to raise new points that could have been presented at the outset. (*American Drug Stores*, 10 Cal. App. 4th at 1453; *Neighbours*, 217 Cal. App. 3d at 335 n.8.)

While the Court exercises its discretion to consider the reply brief despite these procedural deficiencies, it places Defendant on notice that future noncompliant filings may be stricken or disregarded. The Court's reasons for considering these issues are related to consistency and efficiency. Absent those considerations, these procedural deficiencies would alone have been fatal to portions of Defendant's arguments.

IV. Statute of Limitations and Delayed Discovery

Weng's central argument is that plaintiff's claims are barred by their respective two-to-four year statutes of limitations because the underlying transactions occurred between 2015 and 2017, while the lawsuit was not filed until March 2026. The Court is not persuaded by Defendant's demurrer arguments and will overrule the demurrer.

"[A] demurrer on the ground of the bar of the statute of limitations does not lie where the complaint merely shows that the action may have been barred. It must appear affirmatively that, upon the facts stated, the right of action is necessarily barred." (*Stueve Bros. Farms, LLC v. Berger Kahn* (2013) 222 Cal.App.4th 303, 313.) However, where the action is untimely on the face of the complaint, the plaintiff must allege facts showing tolling or delayed accrual. (See *Carrillo v. County of Santa Clara* (2023) 89 Cal.App.5th 227, 234 ["To rely on the discovery rule for delayed accrual of a cause of action, a plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence."].)

Here, no defect in the statute of limitations appears on the face of the complaint because sufficient facts are pleaded relative to the delayed discovery of Defendant's allegedly wrongful conduct. Under the discovery rule, accrual begins when a plaintiff actually suspects, or reasonably should suspect, that wrongful conduct caused her harm. (*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 397-398.) The complaint alleges that: (1) Plaintiff could not read English; (2) Defendant was Plaintiff's bilingual real estate broker and mortgage agent; (3) Defendant falsely described the true nature of the "Gift" Grant

Deed and SunRise Deed of Trust; and (4) Plaintiff discovered the true nature of Defendant's conduct only after Sterling Bank refused her mortgage payment and advised her that she was not the borrower, which caused Plaintiff to have someone assist her in obtaining the chain of title in July 2023 and explain the discovered documents to her in Mandarin. (See Complaint, ¶¶ 13-14, 39-41, 46, 61-71.)

These allegations adequately state when and how discovery occurred and why earlier discovery was not reasonably made, which is sufficient to survive demurrer.

A. Constructive Notice by Recordation

Defendant contends that the statute of limitations began to run on all causes of action when the grant deed and the Sterling Bank deed of trust were recorded in 2016 and 2017, respectively, because their recording imparted constructive notice to Plaintiff.

This issue was addressed in *Arthur v. Davis* (1981) 126 Cal.App.3d 684, wherein Davis, a real estate broker, obtained the signatures of the married Arthur homeowners on a grant deed conveying interest in their home to Davis by misrepresenting the grant deed's true nature. The "Arthurs made all the mortgage payments and handled all the repairs and maintenance on the property." The trial court found for, the then widowed, Ms. Arthur ordering the deed cancelled and title quieted. (*Id.* at 688-690.)

Davis argued that the Arthurs' claims were time barred on appeal because the slander of title occurred with the recording of the fraudulent deed more than four years prior to their discovery of the fraud. *Arthur* rejected that argument holding "a cause of action for slander [of title] or libel does not accrue until the plaintiff 'could reasonably be expected to discover its existence.'" (*Id.* at 692.) Likewise, the court rejected the proposition that homeowners should be required to regularly examine their own chain of title finding, "the constructive notice imparted by virtue of the recording statutes has no applicability here. Such notice is designed to inform prospective purchasers and mortgagees regarding the status of title to the property. Were the rule otherwise, an owner and possessor of real property would be required to periodically check the official records for wild deeds to insure that the statute of limitations on a slander of title action had not run." (*Id.* at 691, n.4 [internal citations omitted].)

Defendant attempts to distinguish *Arthur*, arguing it applied only to an innocent owner excused from checking public records for "wild deeds," rather than a signer who executed the instruments herself. But to prevail on demurrer, Defendant must show the action is time-barred on the face of the pleading. Without authority establishing that recording imparts constructive notice against a property owner whose signature was procured through a fiduciary's deception, Defendant fails to carry that burden.

B. Inquiry Notice and Plaintiff's Execution of Documents

On reply, Defendant shifts ground. Rather than maintaining her original argument that the recorded documents imparted constructive notice sufficient to trigger the statute of limitations as a matter of law, Defendant argues that Plaintiff was on inquiry notice from the outset, which purportedly defeats her allegations of delayed discovery as a matter of law. In support of this position, Defendant argues

that Plaintiff personally executed the instruments and is presumed to know their contents, and that fraudulent concealment cannot independently toll the statute of limitations under *Parsons v. Tickner* (1995) 31 Cal.App.4th 1513. Defendant also argues in responsive fashion that the automatic bankruptcy stay did not toll the statute of limitations on affirmative claims brought by Plaintiff (an argument the Court does not reach because the allegations of delayed discovery are independently sufficient).

To the extent these are arguments that could have been raised in the moving papers, raising them for the first time on reply is improper, and they arguably should not be considered. Nevertheless, the Court considers the arguments because they do not provide a basis to sustain the demurrer.

Defendant argues that Plaintiff's own allegations establish multiple warning signs that should have placed Plaintiff on inquiry and prompted an earlier investigation. First, Defendant argues that Plaintiff's understanding in June 2017 that Defendant was acting as a co-signer on the Sterling Bank loan was enough to alert a reasonable person that Defendant claimed an interest in the loan and the Property, and that Defendant's alleged exclusive control over the account and instruction to withhold loan statements from Plaintiff were red flags. Second, Defendant points to Plaintiff's execution of the Gift Deed in October 2016, arguing that when Defendant failed to secure a refinance and kept Plaintiff in the high-interest SunCoast loan, a reasonable person would have investigated what instrument she had actually signed. Third, Defendant argues that when Plaintiff executed the SunRise Deed of Trust in July 2017 upon her representation that the title company forgot a document, the inconsistency of executing an encumbrance in favor of SunRise Realty for a refinance purportedly through Sterling Bank would have prompted a diligent person to inquire. Finally, citing to *WA Southwest 2, LLC v. First American Title Ins. Co.* (2015) 240 Cal.App.4th 148, Defendant asserts that "[a] non-English speaker who signs legal documents affecting title to real property without seeking translation or independent counsel cannot later invoke that choice as a basis for extending the statute of limitations indefinitely." (Reply, 8:6–9.)

Defendant's reliance on *WA Southwest 2* for the proposition that failure to obtain an independent translation of English-language legal documents defeats delayed discovery as a matter of law is misplaced. *WA Southwest 2* did not involve non-English speakers, language barriers, or any requirement that a party obtain an independent translation of documents or legal counsel (it did, however, recognize that a fiduciary relationship limits the duty of inquiry and postpones accrual until the plaintiff has actual notice of the fiduciary's wrongdoing). (*WA Southwest 2, supra*, 240 Cal.App.4th at p. 157.)

Whether a reasonably prudent person would have been under a duty of inquiry is a question of fact and may not be resolved on demurrer as a matter of law unless "reasonable minds can draw but one conclusion" from the facts alleged in the complaint. (*Baright v. Willis* (1984) 151 Cal.App.3d 303, 311; *E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1320.) Given the alleged fiduciary relationship, Plaintiff's inability to read English, and Defendant's affirmative misrepresentations concerning the purpose and effect of the documents, reasonable minds could conclude that Plaintiff acted reasonably in relying on her broker rather than suspecting wrongdoing. Accordingly, the notice issue cannot be determined as a matter of law at this stage.

Because the Court finds that the complaint adequately alleges delayed discovery, the Court need not and does not reach Plaintiff's alternative bankruptcy tolling argument or determine whether

fraudulent concealment operates as an independent theory of tolling outside the discovery rule.

IV. Sufficiency of Individual Causes of Action

In her moving papers, Defendant raised only cursory objections to the complaint. On reply, Defendant impermissibly expands the demurrer, raising substantive challenges to the quiet title, fraud, and fiduciary duty claims for the first time, while attacking the slander of title, UCL, and accounting claims that were omitted from her moving memorandum. Although new arguments on reply are improper, even considering them on the merits, Defendant fails to show that her demurrer should be sustained. The complaint alleges facts sufficient to state each asserted cause of action against Weng (the second cause of action is against U.S. Bank only).

A. First Cause of Action for Quiet Title

To assert a claim of quiet title of a real property, Plaintiff's complaint was required to include: (1) the legal description and street address of the real property at issue, (2) title sought and the basis of the same, (3) any adverse claims against the title Plaintiff seeks, (4) date of which the determination is sought, and lastly (5) a prayer for relief. (Code Civ. Proc., § 761.020.)

Plaintiff adequately pleads the statutory elements under Code of Civil Procedure section 761.020 by identifying the subject property, specifying the grant deed upon which her fee title is based, identifying Defendant's adverse claims under the purported gift deed, establishing the date as of which determination is sought, and praying for title to be quieted in Plaintiff alone. (Complaint, ¶¶ 39-41, 61-71, 74-91.)

Defendant's contention on reply that the 2016 deed naming both parties as tenants in common defeats the claim as a matter of law is unavailing. Plaintiff specifically alleges that the "Gift" grant deed conveying a 50% tenancy-in-common interest to Defendant Weng was fraudulently procured.

B. Third Cause of Action for Slander of Title

The elements of a cause of action for slander of title are "(1) a publication, (2) which is without privilege or justification, (3) which is false, and (4) which causes direct and immediate pecuniary loss." (*Alpha & Omega Development, LP v. Whillock Contracting, Inc.* (2011) 200 Cal.App.4th 656, 664.)

Here, Plaintiff sufficiently alleges facts establishing each element. Specifically, Plaintiff alleges that Defendant published and recorded unprivileged, false title instruments, including the gift deed, with knowledge or reckless disregard of their falsity, directly casting doubt on Plaintiff's ownership interest and causing pecuniary loss. (Complaint, ¶¶ 39-41, 61-71, 97-112.) These allegations are sufficient to withstand demurrer.

Defendant argues on reply that Plaintiff is estopped from asserting slander of title because she signed and notarized the Gift Deed and SunRise Deed of Trust. But Defendant cites no authority applying estoppel on demurrer where the plaintiff alleges that her signature was procured through fraud by a fiduciary.

C. Fourth Cause of Action for Cancellation of Instruments

A claim for cancellation of instruments requires (1) facts demonstrating the invalidity of the instrument under attack, and (2) that the instrument, if left outstanding, may cause serious injury to a person against whom it is void or voidable. (Civ. Code, sec. 3412; *Thompson v. Ioane* (2017) 11 Cal.App.5th 1180, 1193-1194.)

Plaintiff properly identifies the written instruments encumbering or clouding title and alleges specific facts showing that they were void or voidable due to fraud in the inception and lack of consideration. (Complaint, ¶¶ 39-41, 61-71, 113-125.) An allegation of tender is excused because Plaintiff challenges the underlying existence and validity of the obligations rather than procedural irregularities in a completed foreclosure. (*Lona v. Citibank, N.A.* (2011) 202 Cal.App.4th 89, 112-113.)

D. Fifth Cause of Action for Fraud

The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or “scienter”); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.)

Plaintiff pleads the requisite elements with sufficient particularity by alleging the specific misrepresentations and intentional concealments regarding the nature of the transaction documents, the speaker, the lack of English language translations, Plaintiff’s justifiable reliance in light of the language barrier, and resulting damage. (Complaint, ¶¶ 13-14, 39-41, 46, 61-71, 126-138.)

E. Sixth Cause of Action for Breach of Fiduciary Duty

The elements of a cause of action for breach of fiduciary duty are: (1) existence of a fiduciary duty; (2) breach of the fiduciary duty; and (3) damage proximately caused by the breach. (*Slovensky v. Friedman* (2006) 142 Cal. App. 4th 1518, 1534.)

Plaintiff adequately alleges that Defendant acted as her licensed real estate broker and mortgage loan originator, creating fiduciary obligations under Civil Code section 2923.1 and Business and Professions Code section 10131, which Defendant breached through self-dealing, nondisclosure of material terms, and fraudulent execution of title and loan instruments. (Complaint, ¶¶ 13-14, 39-41, 46, 61-71, 139-155.)

F. Seventh Cause of Action for Negligence

The essential elements of a negligence cause of action are (1) duty, (2) breach, (3) causation, and (4) damages. (See *Quelimane Co. v. Stewart Title Guar. Co.* (1998) 19 Cal.4th 26, 57.)

Plaintiff sufficiently alleges that Defendant owed a duty of due care in handling the transactions alleged in the complaint, breached those duties, and proximately caused damage to Plaintiff. (Complaint, ¶¶ 13-14, 39-41, 46, 61-71, 156-170.)

G. Eighth Cause of Action for Violation of the Unfair Competition Law (UCL)

The necessary elements for violation of the UCL are: (1) a business practice; (2) that is unfair, unlawful, or fraudulent; and (3) an authorized remedy. (Bus. & Prof. Code, § 17200; *Paulus v. Bob Lynch Ford, Inc.* (2006) 139 Cal.App.4th 659, 676.)

Here, Plaintiff alleges facts demonstrating unlawful, unfair, and fraudulent business practices in the procurement and recording of unauthorized real estate instruments, resulting in economic injury. (Complaint, ¶¶ 13-14, 39-71, 171-173.)

H. Ninth Cause of Action for Accounting

An action for an accounting has two elements: (1) that a relationship exists between the plaintiff and defendant that requires an accounting and (2) that some balance is due the plaintiff that can only be ascertained by an accounting. (*Sass v. Cohen* (2020) 10 Cal. 5th 861, 869.)

Contrary to Defendant's characterization on reply, the complaint sufficiently alleges facts to support an action for an accounting. Plaintiff incorporates her prior allegations that Defendant acted as her fiduciary and broker, and expressly alleges that between 2015 and 2023, Defendant received loan payments on the SunCoast and Sterling loans that included uncredited overpayments of principal, interest, and undisclosed fees due back to Plaintiff. (*Id.* ¶¶ 177, 181.) Plaintiff further alleges that the specific amount owed cannot be determined without an accounting of Defendant's receipts and disbursements, and that Defendant has refused demands to provide an accounting. (*Id.* ¶¶ 178-179, 182-183.)

I. Tenth Cause of Action for Declaratory Relief

"Any person ... who desires a declaration of his or her rights or duties with respect to another ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties" (Code Civ. Proc., § 1060.) "The fundamental basis of declaratory relief is an actual, present controversy." (*Tashakori v. Lakis* (2011) 196 Cal.App.4th 1003, 1012.)

Plaintiff's allegations demonstrate a present controversy over the parties' respective rights to the property and the validity of the various instruments. Because the underlying substantive claims survive demurrer, an actual, justiciable controversy exists supporting the claim for declaratory relief. (Complaint, ¶¶ 179-185.)

VI. Uncertainty

Defendant demurs on grounds of uncertainty under Code of Civil Procedure section 430.10, subdivision (f). A demurrer for uncertainty will be sustained only where the pleading is so incomprehensible that the defendant cannot reasonably determine what issues she must meet or respond to. (*Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822.)

Here, the allegations are more than sufficient to apprise Defendant of the claims and conduct asserted against her, and any ambiguity can be clarified in discovery. As such, the uncertainty

demurrer is overruled.

VII. Disposition

Based on the foregoing, the demurrer is **overruled**. Plaintiff shall prepare a formal order consistent with this ruling and serve notice of entry of order. Defendant shall have 10 days from service of notice of entry to file and serve an answer to the complaint.

10. 9:00 AM CASE NUMBER: C26-00970

CASE NAME: RONDA HUDDLESTON VS. NEWREZ LLC

FOR LEAVE TO RECORD LIS PENDENS; MPA ISO

FILED BY: HUDDLESTON, RONDA

TENTATIVE RULING:

Plaintiff Ronda Huddleston seeks leave to record a lis pendens in this matter. Defendant Newrez LLC has filed no opposition. Moreover, at the most recent Case Management Conference, Defendant informed the Court that Ms. Huddleston was in the final stages of a loss mitigation resolution to this matter. For these reasons, the Court **grants** Plaintiff's Motion.

11. 9:00 AM CASE NUMBER: MSC20-00933

CASE NAME: WILLIAMS V. FARTHING

FILED BY: FARTHING, DAVID

TENTATIVE RULING:

This case was filed on May 22, 2020. On December 11, 2024, the Court entered a default judgment against Defendant David Farthing in the amount of \$59,290. On December 31, 2025, Farthing filed a Motion to Set Aside the Default Judgment. At that time, he was acting in pro per. The hearing was set for June 25, 2026. On June 22, 2026, counsel for Farthing filed a Motion to Continue the hearing so that an amended motion could be filed. The hearing was continued to August 27, 2026. Since that date, Farthing has not filed an amended motion, and Plaintiff Leslie Jo Williams has filed nothing at all (indeed she has filed nothing since December 11, 2024). Given that the Court continued the Motion for the explicit purpose of having attorney supplementation, the present motion is **denied without prejudice** for additional information related to the statutory bases for setting aside a default.

12. 9:00 AM CASE NUMBER: N25-1239

CASE NAME: ALEXANDER CAINE VS. DOES 1-20, INCLUSIVE.

PETITION FOR WRIT OF MANDATE

FILED BY:

TENTATIVE RULING:

The Court continues this hearing until September 3, 2026 at 9:00 a.m.